

24STLC05890 24STLC05890

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-09-16

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Case Number: 24STLC05890 Hearing Date: September 16, 2026 Dept: 25

HEARING

DATE: Wed., September 16, 2026 JUDGE /DEPT: Eisenman/25

CASE NAME: Tzoc

v. LACMTA COMPL. FILED: 08-15-24

CASE NUMBER: 24STLC05890

NOTICE:

OK

PROCEEDINGS: MOTIONS TO

COMPEL PLAINTIFF MIGUEL TZOC'S RESPONSES TO FORM INTERROGATORIES, SET ONE AND
TO DEMAND FOR PRODUCTION OF DOCUMENTS, SET ONE; REQUESTS FOR SANCTIONS

MOVING PARTY: Defendant

LACMTA (Los Angeles County Metropolitan Transportation Authority)

RESP. PARTY: None

MOTIONS COMPEL RESPONSES TO

INTERROGATORIES AND TO REQUESTS FOR PRODUCTION OF DOCUMENTS; REQUESTS FOR
SANCTIONS

(Code Civ. Proc., §§ 2030.290; 2031.300)

TENTATIVE RULING:

The Court GRANTS LACMTA's motions.

Miguel Tzoc is ordered to serve verified responses without objections to the form interrogatories and requests for production within 30 days of this order.

Tzoc and his counsel, Sergei N.

Gladkov, Esq., must jointly and severally pay LACMTA \$1,320.00 within 30 days of this order.

LACMTA

is to give notice.

SERVICE:

☒ Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address (CCP §§ 1013, 1013a) OK

☒ 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None

filed as of September 11, 2026 ☐ Late ☒

None

REPLY: None

filed as of September 11, 2026 ☐

Late ☒ None

ANALYSIS:

Miguel

Tzoc sued LACMTA (Los Angeles County Metropolitan Transportation Authority) for negligence. LACMTA answered and then propounded 19 form interrogatories and 15 requests for production of documents on Tzoc. Tzoc failed to timely respond to the discovery requests, so LACMTA moves to compel responses.

A party must respond to interrogatories within 30 days after service of such interrogatories. (Code Civ. Proc., § 2030.260, subd. (a).) If a party fails to do so, it waives the right to object, and the propounding party may move for an order compelling responses to the interrogatories. (Id., § 2030.290, subds. (a), (b).)

A party must respond to requests for production of documents within 30 days after service. (Code Civ. Proc., § 2031.260, subd. (a).) If a party fails to do so, it waives the right to object, and the propounding party may move for an order compelling responses to the requests for production of documents. (Id., § 2031.300, subds. (a), (b).)

LACMTA propounded its discovery in March 2026. To date, no responses have been served. Tzoc has not filed an opposition indicating otherwise. Accordingly, the Court GRANTS LACMTA's motions. Tzoc is ordered to serve verified responses without objections to the form interrogatories and requests for production within 30 days of this order.

Tzoc and his attorney must also pay sanctions for causing LACMTA to move to compel responses. (Code Civ. Proc., § 2030.290, subd. (c); id., § 2031.300, subd. (c).) LACMTA requests a total of \$3,120.00, reflecting three hours for preparing the motions, three hours to review an opposition and prepare a reply, and four hours for attending this hearing, all at the rate of \$300.00 per hour, and \$120.00 in filing fees. Given the similarity of the motions, the shared hearing date, the lack of oppositions and replies, and the straightforward nature of the motions, the Court awards LACMTA sanctions in the reduced amount of \$1,320.00, reflecting four hours incurred at \$300.00 per hour plus \$120.00 in filing fees. Tzoc and his counsel, Sergei N. Gladkov, Esq., must jointly and severally pay LACMTA \$1,320.00 within 30 days of this order.

LACMTA is to give notice.